

22STCV08210 22STCV08210

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-02

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Case Number: 22STCV08210 Hearing Date: September 2, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 2, 2026 TRIAL

DATE: Vacated

CASE: K.B. a minor,

through his parents, Jason Bruss, and Wilma Bruss, et al. v. America Honda

Motor Co., Inc., et al.

CASE NO.: 22STCV08210

DEFENDANT

HMM'S MOTION FOR AN ORDER TO SEAL SETTLEMENT AMOUNT

DEFENDANT

HMM'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

PLAINTIFFS'

MOTION TO SEAL SETTLEMENT TERMS IN CONNECTION WITH PETITION FOR APPROVAL OF
COMPROMISE OF CLAIM

PETITION

FOR APPROVAL OF COMPROMISE OF CLAIM

OR

ACTION OR DISPOSITION OF PROCEEDS OF

JUDGMENT

FOR MINOR OR PERSON WITH A DISABILITY

Plaintiffs, K.B., and A.B., minors, and their parents, plaintiffs

Jason Bruss and Wilma Bruss, were driving a Honda Accord when they were struck in the rear by a Hino 338 medium-duty class 7 truck. Plaintiffs suffered injuries in the accident. Thereafter, Plaintiffs brought this action against Hino Motors Manufacturing, U.S.A, Inc. ("HMM") and American Honda Motor Co. The parties have reached settlement agreements.

Before the

court are four matters: (1) Plaintiffs' Motion to Seal Terms in Connection with Petition for Approval of Compromise; (2) Petitioner Jason Bruss's Petition for Approval of Compromise of Claim; (3) HMM's Motion for an Order to Seal Settlement Amount; and (4) HMM's Motion for Determination of Good Faith Settlement.

These

matters are unopposed.

The court

begins by addressing the motions to seal.

I. DISCUSSION

RE MOTIONS TO SEAL

A. Legal Standard

A motion or application to file under seal must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing. (Cal. R. Ct., rule 2.551(b)(1).) "The court may order that a record be filed under seal only if it expressly finds facts that establish:

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(1) There exists an overriding interest that overcomes the right of public access to the record;

(2) The overriding interest supports sealing the record; and

(3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; and

(4) The proposed sealing is narrowly tailored; and

(5) No less restrictive means exist to achieve the overriding interest.

(Cal. R. Ct., rule 2.550(d)).

Pursuant to Rule 2.550(e), “[a]n order sealing the record must: (A) Specifically state the facts that support the findings; and (B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file.” “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. R. Ct., rule 2.550(c)).

California Rules of Court, rule 2.551(h) sets forth the procedure to unseal records. Rule 2.551(h) provides:

(1) A sealed record must not be unsealed except on order of the court.

(2) A party or member of the public may move, apply, or petition, or the court on its own motion may move, to unseal a record. Notice of any motion, application, or petition to unseal must be filed and served on all parties in the case. The motion, application, or petition and any opposition, reply, and supporting documents must be filed in a public redacted version and a sealed complete version if necessary to comply with (c).

(3) If the court proposes to order a record unsealed on its

own motion, the court must give notice to the parties stating the reason for unsealing the record. Unless otherwise ordered by the court, any party may serve and file an opposition within 10 days after the notice is provided and any other party may file a response within 5 days after the filing of an opposition. 22

(4) In determining whether to unseal a record, the court must consider the matters addressed in rule 2.550(c)-(e). 22

(5) The order unsealing a record must state whether the record is unsealed entirely or in part. If the court's order unseals only part of the record or unseals the record only as to certain persons, the order must specify the particular records that are unsealed, the particular persons who may have access to the record, or both. If, in addition to the records in the envelope, container, or secure electronic file, the court has previously ordered the sealing order, the register of actions, or any other court records relating to the case to be sealed, the unsealing order must state whether these additional records are unsealed. 22

B. 2 Application 22

On June 11, 2026, and July 1, 2026, Plaintiffs and HMM, respectively, filed two motions to seal the settlement amounts stated within a Petition to Approve Compromise filed by Plaintiff, Jason Bruss, on behalf of minor plaintiff, K.B., and HMM's motion for determination of good faith settlement. The parties argue the motions should be granted because the parties executed a settlement agreement which contains a confidentiality provision regarding the settlement amount. Additionally, the parties contend that Plaintiffs have an overriding interest in maintaining the privacy of their financial affairs and HMM has an overriding interest in maintaining the privacy of their commercial information.

The court is not persuaded. In moving to seal, Plaintiffs and HMM each primarily rely on *Universal City Studios, Inc. v. Sup. Ct.* (2003) 110 Cal.App.4th 1273, 1283 (Universal) for the proposition that a "contractual obligation not to disclose settlement amounts can constitute an overriding interest" under California Rules of Court, Rule 2.550. (See Plaintiffs' Motion to Seal, p. 3:3-4; HMM's Motion to Seal, p. 5:8-12.) This quotation, however, is shorn of Universal's complete analysis and therefore borders on a misstatement of law. As noted by the Court of Appeal in *McNair*

v. National Collegiate Athletic Assn. (2015) 234 Cal.App.4th 25, 35-36

Universal

concluded, however, that “more than a mere agreement of the parties to seal documents filed in a public courtroom” is needed. (Universal, *supra*, 110 Cal.App.4th at p. 1281, 2 Cal.Rptr.3d 484.) There must be “a specific showing of serious injury. [Citations.]” (Id. at p. 1282, 2 Cal.Rptr.3d 484.) “[S]pecificity is essential. [Citation.] Broad allegations of harm, bereft of specific examples or articulated reasoning, are insufficient.” [Citation.] We have been unable to find any appellate court decision which construes Publicker to permit sealing of court documents merely upon the agreement of the parties without a specific showing of serious injury.” (Ibid.; accord, Huffy Corp. v. Superior Court (2003) 112 Cal.App.4th 97, 106, 4 Cal.Rptr.3d 823.) Rules of Court, rule 8.46(d)(1) expressly states that a record “must not be filed under seal solely by stipulation or agreement of the parties.” Thus, the mere agreement of the parties alone is insufficient to constitute an overriding interest to justify sealing the documents.

Here,

Plaintiffs’ motion does not make a sufficient showing of injury (see generally Plaintiffs’ Motion to Seal) and thus does not merit a sealing order.[1]

HMM’s motion fares little better. HMM makes broad statements such as “compelling need for public disclosure does not exist because Plaintiffs are private individuals and must be protected from unwarranted harassment concerning the settlement amount they received in this matter” (HMM’s Motion to Seal, p. 5:2-4) and that “HMM considers the settlement amount to be commercially sensitive information that could be used against it by its competitors or future plaintiffs to HMM’s detriment. Specifically, these entities and individuals could use the settlement amount as false evidence that the Hino 338 was defectively designed, or that the accident at issue in this lawsuit was the result of a defect in the design of that vehicle” (HMM Motion to Seal, p. 16:17-21). These statements amount to nothing more than vague allusions to injury. HMM’s showing is insufficient to support a sealing order. Moreover, HMM’s fear that the settlement amount could be used by HMM’s competitors or future plaintiffs as evidence of defective design is unfounded given the general prohibition of the use of a prior settlement as proof of causation or liability under Evidence Code section 1152.

C. Conclusion

Plaintiffs'

Motion to Seal is DENIED.

HMM's Motion

to Seal is DENIED.

II. DISCUSSION

RE MOTION FOR GOOD FAITH DETERMINATION

A. Legal Standard

"Any party to an

action in which it is alleged that two or more parties are joint tortfeasors or coobligors on a contract shall be entitled to a hearing on the issue of the good faith settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or coobligors" (Code of Civ. Proc., § 877.6.)

Good faith settlements further two sometimes competing policies: (1) the equitable sharing of costs among the parties at fault, and (2) the encouragement of settlements. (Erreca's v. Superior Court (1993) 19 Cal.App.4th 1475, 1487.)

A court must

consider several factors including "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial." (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499 (Tech-Bilt).) "Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (Id.)

The evaluation

of whether a settlement was made in good faith is required to "be made on the

basis of information available at the time of settlement.” (Tech-Bilt, 38 Cal.3d at p. 499.) “[A] court not only looks at the alleged tortfeasor’s potential liability to the plaintiff, but it must also consider the culpability of the tortfeasor vis-à-vis other parties alleged to be responsible for the same injury.” (TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal.App.4th 159, 166.) “Potential liability for indemnity to a nonsettling defendant is an important consideration for the trial court in determining whether to approve a settlement by an alleged tortfeasor.” (Id.)

In City of

Grand View Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261, the court provided the following guidance regarding a motion for a good faith settlement determination:

“If the good

faith settlement is contested, section 877.6, subdivision (d), sets forth a workable ground rule for the hearing by placing the burden of proving the lack of good faith on the contesting party. Once there is a showing made by the settlor of the settlement, the burden of proof on the issue of good faith shifts to the nonsettlor who asserts that the settlement was not made in good faith. If contested, declarations by the nonsettlor should be filed which in many cases could require the moving party to file responsive counterdeclarations to negate the lack of good faith asserted by the nonsettling contesting party.”

B. Application

1. Procedural

Requirements

“Any party to an action in which it is alleged that two or more parties are joint tortfeasors ... shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice

in the manner provided in subdivision (b) of Section 1005." (Code of Civ. Proc., § 877.6, subd. (a)(1); *Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1347.)

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Here, HMM served the motion on all parties who have appeared in this action by electronic service on June 11, 2026. The motion is unopposed. The procedural requirements are satisfied.

2. Good Faith Determination

After extensive litigation, an all-day mediation session, and arms-length negotiations, Plaintiffs and HMM entered into a settlement agreement on January 29, 2026. (See Robinson Decl., ¶ 5.) Under the terms of the agreement, HMM agrees to pay Plaintiffs in exchange for a full release of all claims against HMM. (Robinson Decl., Ex. A.) Based on the foregoing, the court concludes the settlement between Plaintiff and HMM was made in good faith. The court is inclined to grant the motion. However, HMM conditionally filed a redacted motion for determination of good faith settlement and lodged the unredacted materials with the court. Given the court's ruling on HMM's motion to seal, the court will continue the hearing for this motion to allow HMM to file an unredacted motion for determination of good faith settlement.

C. Conclusion

The court is inclined to grant HMM's motion for determination of good faith settlement. The court will continue the hearing for the motion to allow HMM to file an unredacted motion.

III. DISCUSSION RE PETITION FOR APPROVAL OF COMPROMISE

On July 1 and July 9, 2026, Petitioner Jason Bruss filed petitions for approval of compromise on behalf of minor plaintiff K.B. Petitioner is the father and conservator of K.B.

After review of the petition, the court finds that the

settlement amount is fair and reasonable, as is the request for attorney's fees. The court is inclined to approve the petition. However, Petitioner did not submit to the court a proposed order to approve the claim on Judicial Council Form MC-351 nor a proposed order to deposit funds in a blocked account on Judicial Council Form MC-355. These forms have been approved for mandatory use. Further, California law requires that the funds be deposited in a financial institution in this state. Based on the attachments to the petition, Petitioner seeks to have the settlement balance deposited with L.C. Financial Services, but it is not clear whether L.C. Financial Services is a financial institution in California. Accordingly, the court cannot approve the petition.

Additionally, although the July 1 petition is redacted, the July 9 petition is not. Given the procedural and substantive defects in the petition, as well as the confidentiality provision in the settlement agreement, the court will hear the parties on how to proceed.

IV. DISPOSITIONS

1.

HMM's Motion to Seal is Denied.

2.

Plaintiffs' Motion to Seal is Denied.

3.

The hearing for HMM's Motion for Determination of Good Faith Settlement is continued to October 20, 2026, to allow HMM to file an unredacted motion. The court is inclined to grant this motion.

4. The court cannot

grant the Petition for Approval of Compromise as submitted. The court will hear from the parties regarding how to proceed.

Moving parties to give notice,
unless waived.

Dated: September 2,
2026

Brock T. Hammond

Judge of the
Superior Court

[1] Plaintiffs may have also waived the right to seal. Plaintiffs filed an unredacted petition on July 9, 2026. The court continues the discussion of this issue in Section III of this order.